

25NWLC53897 25NWLC53897

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-18

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Case Number: 25NWLC53897 Hearing Date: August 18, 2026 Dept: Y

25NWLC53897: WELLS FARGO BANK, N.A. vs MARIA E LEYVA

Tentative Ruling:

The Court has read and considered all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on May 18, 2026 and set for hearing on August 18, 2026. No opposition has been filed by Defendant Maria E. Leyva ("Defendant").

The Court finds that Plaintiff has met the initial burden of showing that there are no defenses to its cause of action for breach of contract by proving each element of the cause of action entitling Plaintiff to summary judgment.

Plaintiff has shown, through admissible evidence, that Defendant was issued the subject credit card by Plaintiff; Defendant was the only person authorized to make charges on the account; Defendant received monthly statements for the account; and there is no record of any unresolved disputes on the account. (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") Nos. 1–9.) The evidence further shows Defendant's last payment on the account was on April 18, 2024 in the amount of \$200.00, and Defendant owes Plaintiff an unpaid balance of \$20,897.32 on the credit account. (Id., UMF Nos. 10–12.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its cause of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Maria E. Leyva in the principal sum of \$20,897.32, plus reasonable attorney's fees and costs. The Proposed Order will be signed by the Court.

Plaintiff must submit a Memorandum of Costs and a declaration in support of reasonable attorney's fees as well as a Proposed Judgment for the Court's review and signature.

Plaintiff to give notice.